

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 25-29

MAC Industries Inc DBA MAC Container Line,

Complainant,

v.

**COSCO Shipping Lines Co., Ltd. and
COSCO Shipping Lines (North America), Inc.,**

Respondents.

**COMPLAINANT’S REPLY TO MOTION FOR
LEAVE TO FILE AMENDED COMPLAINT**

Pursuant to 46 C.F.R. § 502.70(c) (“Rule 70”) and the ALJ’s May 21, 2026 Order (“**Order**”) providing that “Respondents may respond to the motion and *Complainant may reply, in accordance with Commission Rule 70*” (emphasis added), Complainant MAC Industries Inc. dba MAC Container Line (“MAC”) respectfully submits this reply to Respondents’ Opposition (the “Opposition”). MAC’s motion should be granted because (1) Respondents rely on the wrong Rule to argue a duty to confer, (2) Respondents misinterpret Rule 62 based on no caselaw, and (3) the Amended Complaint adequately pleads Shipping Act violations by COSCO Shipping Lines (North America), Inc. (“CSLNA”) and COSCO Shipping Lines (India) Private Limited (“CIN”).

I. No Duty to Confer under Rule 70.

MAC fully complied with the Commission Rules: Rule 70 imposes no duty to confer; Respondents *themselves* invoked Rule 70 (Opp. at 1); and most importantly the ALJ’s Order expressly directed MAC to proceed under Rule 70:

It is FURTHER ORDERED that Complainant file a motion seeking leave to file an amended complaint . . . *Respondents may respond to the motion and Complainant may reply, in accordance with Commission Rule 70.* If the motion and amended complaint are not filed, an order dismissing this action with prejudice will be issued.

Order on Motion to Dismiss, 25-29, at 14 (emphasis added). Accordingly, no duty to confer applied.¹ Respondents' reliance on Commission Rule 71's conferral requirement (Opp. pp. 3-4) is objectively misplaced.

II. Incorrect Interpretation of Commission Rule 62

The Opposition attempts to invoke procedural rules (this time citing no cases) when it asserts that “the courts have concluded” (without identifying which courts) that FRCP 8(a) bars “detailed argument” and “multiple citations in footnotes” in complaints (Opp. at 4-5). This is incorrect. To begin with, the very Commission Rule Respondents rely on (62) *explicitly requires* citation of legal authorities in an FMC complaint: “The complaint . . . must contain the following: . . . a recitation of the *legal authority* and jurisdiction for institution of the proceeding, with specific designation of the statutory provisions alleged to have been violated.” Moreover, Respondents' arguments based on the pleading standards set forth in Federal Rule of Civil Procedure 8 are baseless. Rule 8 requires that a complaint include “a short and plain statement of the claim showing that the pleader is entitled to relief” (emphasis added),² a requirement that must be read

¹ Respondents' counsel improperly impugns undersigned counsel's adherence to Commission Rules while relying on the wrong provision *and* inapposite case law. *Compare* 46 C.F.R. § 502.70 (imposing no duty to confer) *with* 46 C.F.R. § 502.71 (a separate Rule imposing a duty to confer that does not apply here). Respondents' counsel further relies on inapposite Rule 71 case law. *See* Opp. at 4 n.5 (citing *Cool Living LLC v. Alpi U.S.A., Inc.*, Dkt. 25-28, 2026 WL 1574663 at *1 (ALJ Order Denying Mot. to Am. Compl., May 11, 2016) (addressing 46 C.F.R. § 502.71 throughout)).

² This is substantially similar to the standard set forth in Commission Rule 62. *See* 46 C.F.R. § 502.62(a)(iii) (requiring “[a] clear and concise factual statement sufficient to inform each

alongside Federal Rule 11's requirement that "claims... and other legal contentions are warranted by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law or for establishing new law." In order to properly "show that [Complainant] is entitled to relief" as required by Commission Rule 62 (and Federal Rule 8) on the claims set forth in the Amended Complaint, MAC included minimal legal authorities to support the factual allegations regarding its claims. This was particularly appropriate given the legal arguments previously raised in Respondents' Motion to Dismiss asserting that MAC has no legal basis on which to assert certain claims, and also challenging the Commission's jurisdiction over certain Respondent entities.³ Most importantly, the ALJ's Order specifically criticized MAC's prior briefing for failure to "cite caselaw" (Order at 14), and directed MAC to "review the law" before filing the Amended Complaint. Respondents' suggestion that MAC's citation of authorities in the Amended Complaint is somehow improper is baseless.

III. The Amended Complaint Adequately Pleads Claims Against CSLNA and CIN.

Respondents' jurisdictional arguments are misplaced and better suited for a motion under Rule 12(b)(1), (2). Regardless, the Amended Complaint plausibly alleges that CSLNA and CIN acted directly in their own individual capacities without disclosing a principal. CIN's own documents (Exs. 4-6) identify it only "as agents," without naming any principal. Likewise,

respondent with reasonable definiteness of the acts or practices alleged to be in violation of the law, and a statement showing that the complainant is entitled to relief."

³ See, e.g., *Farmers Ins. Group v. United States*, 2009 U.S. Dist. LEXIS 113458, *4 (E.D. Mich. Dec. 7, 2009) (authorizing fourth amended complaint but directing that "[t]he Plaintiff is encouraged to focus on the claim or claims that may be successful, and support them with factual and legal authority."). See also *Garrett v. Selby Connor Maddux & Janner*, 425 F. 3d 836, 840 (10th Cir. 2005) (cited at p. 12 of the ALJ Order, and noting that complaint was submitted "without reference to legal authority" and likewise noting "a plaintiff's failure to cite proper legal authority").

CSLNA's communications by Mark Sibincic (Ex. 11) do not identify COSCO or disclose any agency relationship. Although CSLNA is referenced as an agent in the service contract (Ex. 2), the alleged conduct falls outside that agreement, including efforts to modify its terms and actions inconsistent with a service contract.

An agent avoids liability only if it clearly holds itself out in the name of a disclosed principal. *Landstar Express Am., Inc. v. FMC*, 569 F.3d 493, 497 (D.C. Cir. 2009). Here, neither CSLNA nor CIN does so. Accordingly, MAC has sufficiently alleged Shipping Act violations at the pleading stage, subject to Respondents' right to challenge the facts through appropriate procedures.

For these reasons, MAC respectfully requests that its Motion for Leave to Amend be granted.

June 26, 2026

Respectfully submitted,



JONES WALKER LLP

JULIA BONESTROO BANEGAS

1 M Street SE, Suite 600

Washington, DC 20003

(575) 640-8469

jbanegas@joneswalker.com

CHRISTOPHER M. HANNAN

ABIGAIL J. WEILAND

201 St. Charles Avenue, Suite 5100

New Orleans, Louisiana 70170

(504) 582-8000

channan@joneswalker.com

aweiland@joneswalker.com

***Counsel for Complainants MAC Industries Inc.
dba MAC Container Line***

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 26th day of June 2026, the foregoing Reply to the Opposition was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth
Chief Administrative Law Judge
judges@fmc.gov

Eric C. Jeffrey
Rebecca A. Fenneman
Kaya C. Massey
Nicholas L. Webb
EJeffrey@JeffreyFenneman.com
RFenneman@JeffreyFenneman.com
KMassey@JeffreyFenneman.com
NWebb@JeffreyFenneman.com
Attorneys for Respondents



JULIA BONESTROO BANEGAS